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Case Number: 24STCV05772 Hearing Date: August 21, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: August 21, 2026 TRIAL DATE: September 13, 2027

CASE: Howard Scott Jordan II, et al. v. Irina Ioana Ciochiu, et al.

CASE NO.: 24STCV05772

PLAINTIFF

HOWARD SCOTT JORDAN II'S MOTION FOR SUMMARY ADJUDICATION AGAINST DEFENDANTS IRINA IOANA CIOCHIU AND INTERNATIONAL FLIGHT HELP MANAGEMENT, INC.

MOTION

TO QUASH OR MODIFY SUBPOENA DUCES TECUM SERVED ON JP MORGAN CHASE BANK, N.A.

PLAINTIFF

HOWARD SCOTT JORDAN II'S MOTION TO COMPEL DEFENDANT

INTERNATIONAL

FLIGHT HELP MANAGEMENT, INC.'S FURTHER RESPONSES TO SPECIAL INTERROGATORIES, SET ONE

In 2022, Howard Scott Jordan II ("Jordan") and Irina Ioana Ciochiu ("Irina") formed a partnership to operate a business under the name Flighthelp, LLC ("FlightHelp"). The purpose of FlightHelp was to assist consumers in making claims against airlines for flight issues. Jordan and Ciochiu agreed to operate the business in connection with Wynn Capital Management, SRL ("Wynn"). Wynn is a Romanian company owned by Irina's father, Ion Ciochiu ("Ion"). Jordan alleges that, in 2024, Irina severed Jordan from FlightHelp and started International Flight Help Management, Inc. ("IFHM") to compete with and replace FlightHelp, diverted business assets to herself, her family, and acquaintances, operated FlightHelp without Jordan's consent, drained FlightHelp's bank account, and obstructed Jordan's ability to perform his fiduciary duties and his obligations to the business, among other conduct.

Before the court are three motions: (1) Jordan's Motion for Summary Adjudication Against Irina and IFHM; (2) IFHM and Irina's Motion to Quash or Modify Subpoena Duces Tecum Served On JP Morgan Chase Bank, N.A.; and (3) Jordan's Motion to Compel IFHM's Further Responses to Special Interrogatories, Set One. The court addresses each in turn.

I. DISCUSSION
RE MOTION FOR SUMMARY ADJUDICATION

A. Background

On March 7, 2024, Plaintiffs, Jordan and FlightHelp LLC, commenced this action.

On June 16, 2025, Plaintiffs filed the operative Second Amended Complaint ("SAC") against Defendants,[1] Ciochiu, IFHM, and Flighthelp Management LLC, alleging causes of action for (1) fraud, (2) breach of fiduciary duty, (3) conversion, (4) breach of partnership agreement, (5) unfair competition, (6) violations of Bus. & Prof. Code § 17200, et seq., (7) partnership dissolution (Corp. Code § 16801), (8) violations of Penal Code § 496, (9) accounting, (10) breach of contract, (11) breach of operating agreement, (12) breach of covenant of good faith and fair dealing, (13) specific performance, and (14) quantum meruit.¿ As relevant here, the eleventh and twelfth causes of action are asserted by Jordan against Ciochiu.

On

March 9, 2026, Jordan filed this motion for summary adjudication.

On July 10, 2026,
Ciochiu filed an opposition.

On July 20, 2026,
Jordan filed a reply.

B. Evidentiary
Objections

Ciochiu submits three objections to portions of the declaration of Marius Mateescu and exhibits attached thereto, and five objections to portions of the declaration of Howard Scott Jordan II. The objections are OVERRULED.

C. Legal Standard

The purpose of a motion for summary judgment or summary adjudication “is to provide courts with a mechanism to cut through the parties’ pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute.”¿ (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843; Code Civ. Proc., § 437c(c).)¿ A plaintiff reaches its burden by showing prima facie evidence for each element of its cause of action.¿(Code Civ. Proc, § 437c(p); Scalf v. D. B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1519.)¿ The burden will then shift to the defendant to show the existence of a triable issue of material fact for at least one element of the cause of action at issue.¿ (Ibid.)¿¿¿¿¿

Courts “liberally construe the evidence in support of the party opposing summary judgment or summary adjudication and resolve doubts concerning the evidence in favor of that party.”¿ (Dore v. Arnold Worldwide, Inc. (2006) 39 Cal.4th 384, 389.)¿ However, if all inferences reasonably deducible from the submitted evidence are uncontradicted by other inferences and there is no triable issue as to any material fact, the moving party is entitled to summary adjudication as a matter of law.¿¿(Code Civ. Proc., § 437c(c); Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.)¿¿¿

D. Application

Jordan seeks summary adjudication of the eleventh cause of action for breach of Flighthelp's operating agreement and twelfth cause of action for breach of the implied covenant of good faith and fair dealing against Ciochiu. These causes of action are premised on Jordan's alternative theory that, although allegedly procured by Ciochiu's fraud, Flighthelp's Operating Agreement[2] (hereafter, the "Agreement") is enforceable. (See SAC, ¶¶ 139, 144.) The court begins by quickly disposing of two miscellaneous issues raised by Ciochiu before considering each cause of action.

1.

Miscellaneous Challenges

Ciochiu first argues the motion should be denied because the notice of motion improperly seeks adjudication against Ciochiu and IFHM in violation of Code of Civil Procedure section 437c(f)(1). The argument is meritless. Section 437c(f)(1) states, in pertinent part, "[a] motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty." Here, even though the eleventh and twelfth causes of action are not asserted against IFHM, the notice of motion properly apprises Ciochiu that summary adjudication is sought against her. A ruling in Jordan's favor would completely dispose of these causes of action. Ciochiu does not cite any authority, and the court is not aware of any, standing for the proposition that a motion for summary judgment or summary adjudication may be denied simply because it includes an improper party. At most, Ciochiu succeeds only in demonstrating summary adjudication cannot be obtained against IFHM on these causes of action. However, as to Ciochiu, the motion is properly before this court.[3]

Second, Ciochiu argues the motion should be denied because of Jordan's contradictory allegations regarding the enforceability of the Operating Agreement. This argument fares no better. "W.R.C.P. 8 allows parties to plead hypothetically, inconsistently, and in the alternative. Therefore, when an inconsistency in pleading is present because of the liberal modern pleading rules, use of the pleading as an evidential admission should be disallowed." (Haderlie v. Sondgeroth (Wyo. 1993) 866 P.2d 703, 714 (cleaned up); see also Redland v. Redland (2012) 288 P.3d 1173, 1209 [noting that, although a claimant may not recover inconsistent or cumulative judgments, a party may plead inconsistent claims in the alternative].)

Here, the SAC asserts two theories regarding the Agreement: (1) it is unenforceable because it was procured by fraud; (2) it is enforceable. These theories are inconsistent. Ciochiu now attempts to use these inconsistent allegations as evidential admissions. Wyoming law rejects this practice. The court follows suit and turns to the merits of the motion.

2. Breach of Operating Agreement (11th COA)

The eleventh cause of action is based on the following alleged breaches:

Irina breached the Operating Agreement by not using her ability to control Wynn for Flighthelp's benefit. Because Irina was not Wynn's actual owner, she was required to use her ability to control Wynn to cause it to become owned by Flighthelp. Her failure to cause Wynn to take all steps necessary to become a series of Flighthelp, including causing it to take corporate action in Romania to effectuate Flighthelp's ownership of Wynn, is a breach of the Operating Agreement. Irina's use of Wynn's assets including its 2023/2024/2025 revenues without regard to Flighthelp and/or Jordan's rights in those revenues also constitutes a breach of the Operating Agreement. Wynn and Ion ratified Irina's conduct by knowing of it and failing to take steps to prevent her from engaging in it, and instead benefiting from it."

(SAC, ¶ 142.)

Jordan argues summary adjudication of the eleventh cause of action is warranted because (i) the parties signed the Agreement on March 8, 2023 (Jordan's Separate Statement of Undisputed Material Facts (UMF)1); (ii) Irina admits the Agreement is valid and controls the relationship between her and Jordan (UMF 2); (iii) per the Agreement, Jordan has the authority to manage, direct, and control the legal business affairs of the business, Irina has the right to participate in the management of the business and to act on FlightHelp's behalf with Jordan's consent, and both parties have the authority to manage any subsidiaries created for the purposes of being part of the series of businesses managed by FlightHelp (Id.); (iv) Irina, who has power of attorney over the affairs of Wynn, has refused to cause Wynn to become a subsidiary or series of FlightHelp despite Jordan's request that she do so (UMF 8); (v) Irina has caused Wynn to transfer over $1,246,552.82 in funds to IFHM rather than FlightHelp (UMF 9, 11-13); and (vi) Jordan has been damaged in that sum.

"To establish a prima facie case for breach of contract, a plaintiff must show: (1) a lawfully enforceable contract, (2) an unjustified failure to timely perform all or any part of what is promised therein, and (3) entitlement of the injured party to damages." (Kappes v. Rhodes (2022) 512 P. 3d 31, 35 (cleaned up).)

The court denies the motion as to the eleventh cause of action on narrow grounds. The eleventh cause of action is premised, in part, on the notion that Irina has the power to cause Wynn to become a subsidiary or series of FlightHelp. However, a review of the Agreement, FlightHelps' Articles of Organization, and Irina's power of attorney does not support Jordan's position.

The Agreement states, in relevant part,

The purpose of this LLC is to own and consolidate revenue from foreign registered subsidiaries which are required to do business in countries outside of the United States. The name of the Company is Flighthelp LLC ("A Wyoming registered Close and Series LLC").

Ownership

The ownership of the company shall be divided as follows:

Irina Ciochiu shall own 51% of the Company.

Scott Jordan shall own 49% of the Partnership.

Management

The management of the business shall be conducted by Scott

Jordan, who shall serve as the Managing Partner. The Managing Partner shall have the authority to manage, direct, and control the legal business affairs of the business. Irina Ciochiu shall have the right to participate in the management of the business, but shall not have the authority to act on behalf of the business without the consent of the Managing Partner. Partners shall have the authority to manage any subsidiaries created for the purposes of being part of the “series” of businesses managed by FlightHelp LLC.

…

Entire Agreement

This Agreement constitutes the entire agreement between the Partners and supersedes all prior agreements and understandings, whether written or oral, relating to the subject matter of this Agreement.

(Jordan’s Compendium of Exhibits, Ex. 1.)

The
Articles of Organization states, in pertinent part,

VII. Established Series:

Ownership of WYNN CAPITAL MANAGEMENT SRL: FlightHelp LLC, a series within the Company, shall be the sole owner of WYNN CAPITAL MANAGEMENT SRL, a foreign corporation organized under the laws of Romania. FlightHelp LLC shall have the power to manage, control, and direct the business and affairs of WYNN CAPITAL MANAGEMENT SRL, subject to the limitations set forth in the Operating Agreement of FlightHelp LLC. The assets of WYNN CAPITAL MANAGEMENT SRL shall be kept separate and apart from the assets of FlightHelp LLC and of any other series within the Company, and the debts, liabilities, and obligations of WYNN CAPITAL MANAGEMENT SRL shall be enforceable only against the assets of such foreign corporation.

(Jordan’s Compendium of Exhibits, Ex. 1, emphasis in original.)

Last, under
the Special Power of Attorney (the “POA”), Ion granted Irina the following authority:

“[M]y
proxies will carry out all the operations related to the good running of [Wynn], they will be able to manage the account opened in the name of the company, they will sign all the necessary documents with the banking agencies, they will be able to carry out any kind of banking operations (depositing and withdrawing cash, payments, withdrawing account statements, signing payment orders, promissory notes and CECK slips, account liquidation/ closing, etc.), having “individual” signature rights, will represent me at the Chamber of Commerce and Trade Register, Craiova City Hall, A.H.O.F.M., Territorial Labor Inspectorate, labor Protection, Official Gazette, notary public, Court, Public Finance Administration, A.N.A.F., Treasury-customs bodes, Consumer Protection, Police, Prefecture, as well as the authorities subordinate to the Ministry of the Environment, for the submission of tax declarations and all documents required by law and within the appropriate terms, to the control carried out by the institutions listed above, in relations with “other commercial or state companies, from the country and from abroad, they will be able to make notifications, submit documentation and documents for authorization, collect from any institution any documents issued for the company, and in the event that my interests regarding the company will be prejudiced, they will be able to represent me before the judicial bodies of any degree, making any request or statement on my behalf, administering evidence appealing the decision of the court of appeal, if the case will be, and taking care of the execution of the remaining final decision.

My
trustees are authorized to sign in my name and for me additional documents regarding the company mentioned above, in the sense that they will be able to increase the social capital, open work points and add objects of activity, they will be able to take valid decisions in within the company, to carry them out, they will deposit and collect any amount of money, in the name of the company, from any commercial company or autonomous management, will be able to conclude and sign rental contracts, loan agreements, employment contracts, commercial contracts for the smooth running of the company’s activity and collaboration contracts with material suppliers necessary of the running of the company’s activity, my trustees having full powers to establish the price, conditions and terms of the contracts, with the exception of guarantee documents, loans from bank or from natural persons, deeds of assignment or contracts for the sale of the company goods and will be liable to the authorities in the event of faulty administration or in the event that they will cause damage to the company.

(Jordan’s Compendium of Exhibits, Ex. 5.)[4]

There is nothing in the POA which grants Irina the authority to make Wynn a subsidiary or series of any other company, including FlightHelp. It is simply beyond the scope of the POA. The issue, then, is whether Irina's authority to change Wynn's organizational structure as provided under the Agreement and Articles of Organization somehow overrides the limited scope of the POA.

Jordan fails to meet his initial burden. Two points form the basis of the court's finding.

First, the Articles are not referenced nor incorporated into the Agreement. Relatedly, the Agreement, which is unambiguous, contains an integration clause. Thus, the Articles' terms cannot be construed as part of the Agreement. Doing so would run afoul of the parol evidence rule. (See Renberg v. Hirshberg (2003) 64 P.3d 115, 119 [agreeing with district court's finding that contract was unambiguous and fully integrated and thus, could not be modified or determined through parol evidence].) In reply, Jordan argues there is a significant body of law which "holds that the Articles of Organization form part of the contract between Ciochiu and Jordan, along with the Operating Agreement—contrary to Ciochiu's implications otherwise." (Reply, p. 4:2-4.) Jordan, however, misses the point. The eleventh cause of action is premised on breaches of the Agreement. That agreement is fully integrated. Thus, even if the Articles are a contract between Ciochiu and Jordan, they are separate contracts which cannot be construed together. Moreover, Jordan fails to show that any relevant portion of the Agreement is ambiguous to justify reliance on the Articles as parol evidence.

Second, because Wynn is a separate entity that is not owned by Irina, the Agreement cannot and does not determine Wynn's actions or affairs. Stated another way, because Irina has no legal ability to make Wynn a series of FlightHelp, Jordan does not meet his initial burden to establish a breach of the Agreement on this ground.

Jordan cannot meet his prima facie burden on every alleged breach of the Agreement. The eleventh cause of action cannot be disposed of on this motion. (Code Civ. Proc., § 437c(f)(1).) Summary adjudication is therefore unwarranted.

3.

Breach of the Implied Covenant of Good Faith and Fair Dealing - Violation of Corporations Code § 17704.09(d) (12th COA)

Like the eleventh cause of action, the twelfth cause of action is based in part on Irina's failure to take all necessary steps to cause Wynn to become a series of FlightHelp and to cause the transfer of ownership of Wynn to FlightHelp. (See SAC, ¶¶ 146-148.) Given the court's ruling on the eleventh cause of action, summary adjudication of the twelfth cause of action is not warranted.

E. Conclusion

The motion for summary adjudication is Denied.

II. DISCUSSION RE MOTION TO QUASH SUBPOENA

A. Background

On March 24, 2026, IFHM and Ciochiu (hereafter, "Defendants") filed a motion to quash or modify subpoena duces tecum served by Plaintiffs on JP Morgan Chase Bank, N.A. Plaintiffs seek IFHM's financial records. Defendants do not request sanctions.

On July 20, 2026, Plaintiffs filed an opposition.

At the time of this writing, no reply had been filed.

B. Legal Standard

If a subpoena requires the attendance of a witness or the production of books, documents, electronically stored information, or other things before a court, or at the trial of an issue therein, or at the taking of a deposition, the court, upon motion reasonably made by any person described in subdivision (b), or upon the court's own motion after giving counsel notice and an opportunity to be heard, may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands such as unreasonable violations of the right of privacy.¿ (Code Civ. Proc., § 1987.1.)¿¿

C. Application

Defendants seek an order quashing or modifying the subpoenas on the grounds they are overbroad, seek irrelevant information, and violate the privacy rights of Defendants and/or their employees.

IFHM’s objections to the subpoenas lack merit. The subpoena seeks relevant information for the reasons stated in Plaintiffs’ opposition. The subpoena also seeks a production of documents from a sufficiently narrow period of time. This same reasoning applies to IFHM’s overbreadth and irrelevance objections.

As to the privacy objections, the objections lack merit. IFHM are corporations and thus do not enjoy a constitutional right to privacy. (See SCC Acquisitions, Inc. v. Sup. Ct. (2015) 243 Cal.App.4th 741, 756 [“We conclude corporations do not have a right of privacy protected by the California Constitution.”].)

D. Conclusion

The motion to quash subpoena is DENIED.

III. DISCUSSION
RE MOTION TO COMPEL FURTHER

A. Background

On June 23, 2026, Jordan filed a motion to compel IFHM’s further responses to Special Interrogatories, Set One, Nos. 1-81. Jordan requests sanctions against IFHM and its counsel.

On August

5, 2026, IFHM filed an opposition. IFHM requests sanctions against Jordan and his counsel.

On August 11, 2026, Jordan filed a reply.

B. Legal Standard

Under Code of Civil Procedure section 2030.300, parties may move for a further response to interrogatories where an answer to the discovery request is evasive or incomplete or where an objection is without merit or too general.¿¿¿

¿¿¿

Notice of the motion must be given within 45 days of service of the verified response, otherwise, the propounding party waives any right to compel a further response.¿ (Code Civ. Proc., § 2030.300(c).)¿¿¿

¿¿¿

Finally, California Rules of Court, rule 3.1345(a)(3) requires that all motions for responses involving further discovery contain a separate statement with the text of each request, the response, and a statement of factual and legal reasons for compelling further responses.¿

¿

Monetary Sanctions¿¿¿

¿¿¿

Code of Civil Procedure section 2023.030 is a general statute authorizing the Court to impose discovery sanctions for “misuse of the discovery process,” which includes (without limitation) a variety of conduct such as: making, without substantial justification, an unmeritorious objection to discovery; making an evasive response to discovery; and unsuccessfully and without substantial justification making or opposing a motion to compel or limit discovery.¿ (Code Civ. Proc., § 2023.010.)¿¿¿¿

¿¿¿

If sanctions are sought, Code of Civil Procedure section 2023.040 requires that the notice specify the identity of the person against whom sanctions are sought and the type of sanction requested, that the motion be supported in the points and authorities, and the facts be set forth in a declaration supporting the amount of any monetary sanction.¿¿¿¿¿¿

¿¿

Sanctions shall be awarded against any party, person or attorney who unsuccessfully makes or opposes a motion to compel further responses, unless the Court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of sanctions unjust.¿ (Code Civ. Proc., § 2030.300(d).)¿

Sanctions may also be imposed against counsel if a party seeking sanctions against an attorney offers sufficient evidence of a misuse of the discovery process, and the attorney fails to demonstrate that he or she did not recommend that conduct. (Kwan Software Engineering, Inc. v. Hennings (2020) 58 Cal.App.5th 57, 81 (Kwan Software).)¿¿

C. Application

1. Meet and Confer

IFHM first argues the motion should be denied because for Jordan’s failure to engage in a proper meet and confer process. A motion to compel further responses to discovery must be accompanied by a meet and confer declaration.¿ (Code Civ. Proc., § 2030.300(b)(1).)¿¿A review of Jordan’s meet and confer declaration does not support IFHM’s position. Jordan made several attempts to informally resolve this discovery dispute. This motion followed only after it became apparent further attempts to meet and confer would be futile. (See Mateescu Decl., ¶¶ 5-17.) The court is satisfied with Jordan’s meet and confer efforts.

2. Special Interrogatories (“SROG”)

Jordan seeks IFHM’s further responses to SROG Nos. 1-81. Broadly speaking, these interrogatories seek IFHM’s financial records from February 2024 to April 2026. In response, IFHM asserted objections and a substantive response pursuant to Code of Civil Procedure section 2030.230 referring to document productions. IFHM did not verify its substantive responses.

The court will grant the motion. IFHM asserted meritless objections which the court rejects for the reasons stated in Jordan’s moving papers and separate statement. As to IFHM’s substantive response, IFHM’s reliance on Code of Civil Procedure section 2030.230 is misplaced for three reasons. First, IFHM did not verify that response. “Unsworn responses are tantamount to no responses at all.” (Appleton v. Superior Court (1988) 206 Cal.App.3d 632, 635-636.) Second, IFHM’s invocation of section 2030.230 is improper because IFHM does not explain how the interrogatories necessitate the preparation or the making of a compilation, abstract, audit, or summary, and how the burden or expense of preparing or making it would be substantially the same for Jordan as for IFHM. Third, IFHM refers to voluminous documents which do not relate to the nature and purpose of each bank transfer that is requested by these SROGs. Further verified responses without objection are warranted.

3. Monetary Sanctions

Given the court’s ruling, the court finds sanctions against IFHM and its counsel are warranted. Sanctions are therefore imposed against IFHM and its counsel of record in the reduced sum of $3,000.

D. Conclusion

Jordan’s motion to compel further is GRANTED. IFHM is ordered to provide verified further responses without objection to SROG Nos. 1-81 within 45 days of this order.

Jordan’s request for sanctions is GRANTED. IFHM and its counsel are ordered to pay, jointly and severally, sanctions in the sum of $3,000 within 45 days of this order.

IV. DISPOSITIONS

1. The motion for summary adjudication is Denied.

2. The motion to quash subpoena is Denied.

3. The motion to compel further is Granted. IFHM is ordered to provide verified further responses without objection to SROG Nos. 1-81 within 45 days of this order. Jordan’s request for sanctions is Granted. IFHM and its counsel are ordered to pay, jointly and severally, sanctions in the sum of $3,000 within 45 days of this order.

Dated: August 21, 2026

Brock T. Hammond

Judge of the Superior Court

[1] Plaintiffs also named Wynn and Ion as defendants. Wynn was dismissed on July 1, 2025. Ion was dismissed on September 16, 2025.

[2] The Agreement provides that it “shall be governed by and construed in accordance with the laws of the State of Wyoming, without regard to its conflict of law provisions.” Accordingly, the court applies Wyoming law in disposing of the eleventh cause of action.

[3] Ciochiu also raises a related argument that the motion should be denied because IFHM is not a signatory to the Operating Agreement and thus cannot be held liable for breach of the Operating Agreement nor breach of the implied covenant of good faith and fair dealing in related to that agreement. Again, Ciochiu succeeds only in demonstrating summary adjudication of these claims is not available against IFHM. Ciochiu’s position that the entire motion fails for these reasons is a step too far.

[4] The Special Power of Attorney is written in Romanian. The quoted language comes from the translation of the document.